

		(Statute of Limitations) is overruled. An affirmative defense based on the failure to state facts or statute of limitations does not require that facts be pleaded in support thereof. (See Code Civ. Proc., §§ 430.801, 458; see also 5 Witkin, Cal. Proc. 5th (2008) Pleading, § 1082, p. 515 [an affirmative defense of failure to state contradicts the essential allegations of the complaint and does not raise new matters, but merely denies them in affirmative form].) Defendants have failed to allege any facts in support of the remaining affirmative defenses. Accordingly, the demurrer to these affirmative defenses is sustained. In light of this ruling, Plaintiff's request to strike the affirmative defenses is denied as moot. Should Defendants wish to file a First Amended Answer to address the issues discussed above, Defendants shall do so by May 29, 2026. Plaintiff shall give notice of this ruling. <u>Case Management Conference</u> The Case Management Conference is continued to July 16, 2026, at 9:00 a.m. in this department. Plaintiff to give notice.
8	SPCB Ventures, Inc. v. Senoa Holdings, Inc.	Defendant Senoa Holding LLC, erroneously sued as Senoa Holdings, Inc.'s demurrer to Plaintiff SPCB Ventures, Inc.'s complaint is OVERRULED. Defendants Anthony Perkins and Matsuki Perkins' demurrer to SPCB Ventures, Inc.'s complaint is OVERRULED as to the 1st, 2nd, 4th, 5th, and 6th causes of action for fraud and violation of Bus. & Prof. Code § 17200 <i>et seq.</i>, and SUSTAINED as to the 3rd and 7th causes of action for breach of contract and breach of covenant of good faith and fair dealing. Plaintiff is granted 20 days leave to amend. <u>General standard</u> A demurrer only tests the sufficiency of the pleadings. (<i>See Satyadi v. West Contra Costa Healthcare District</i> (2014) 232 Cal.App.4th 1022, 1028 [in analyzing a demurrer, the court looks only to the face of the pleadings and to matters judicially noticeable and not to the evidence or other extrinsic matters]). In reviewing the propriety of the sustaining of a demurrer, the "court gives the complaint a reasonable interpretation, and treats the demurrer as admitting all material facts properly pleaded. [Citations.] The court does not, however, assume the truth of contentions, deductions or conclusions of law. [Citation.] The judgment must be affirmed 'if any one of the several grounds of demurrer is well taken. [Citations.]' [Citation.] However, it is error for a trial court to sustain a demurrer when the plaintiff has stated a cause of action under any possible legal theory. [Citation.] And it is an abuse of discretion to sustain a demurrer